

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ERICA PLAM,

Petitioner

VS.

ERIC HUDSON PLAM,

Respondent

) Case Number: FDI-22-796258

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, OST TO HEARING RE : SALE OF
RENO HOME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Erica Plam (Mother) and Respondent Eric Hudson Plam (Father).
- 2) On 10/7/25, the Court issued a Final Statement of Decision, which includes disposition of the Reno property located at 712 S. Arlington Avenue Reno, Nevada (see Page 7) and orders related to the Reno property (see page 23).
- 3) On 3/30/26, Mother filed an ex parte application seeking an order shortening time for hearing on a Request for Order regarding enforcement of 10/7/25 Statement of Decision. Mother requests the Court: (a) compel the sale of the Reno property within 10 days; (b) appoint Clara Tate as the listing agent, unless the parties agree otherwise in writing; (c) permit the listing agent to determine the listing price; (d) order Father to cooperate to prepare, market, and sell the Reno property (i.e., signing documentation, vacating the property, and permitting access to the property); (e) appoint an elisor to sign documentation on Father's behalf if Father fails to cooperate; (d) order the sale proceeds to be deposited into the IOTOLA account of Rubin &

1 Levavi; and (e) reserve jurisdiction over all issues relating to the sale, escrow, and distribution of
2 proceeds.

3 4) On 3/30/26, the Court denied Mother's request for an order shortening time and set the matter for
4 regular hearing on 4/23/26.

5 5) On 4/10/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
6 Father asserts that his buyout right is still active under the Final Statement of Decision because:

7 (a) the Final Statement of Decision establishes a sequential process wherein the appraisal is a
8 condition precedent to the buyout period; (b) no licensed appraisal was completed within the
9 initial 30-day window by either party; and (c) Mother obstructed the appraisal process. Father
10 requests the Court enforce the buyout provision by ordering that Father's buyout of Mother's
11 community property interest be completed within 30 days of the hearing, at a price of
12 \$139,718.07, which Father alleges is Mother's 50% share of net community property equity
13 based on the appraised value of \$705,000 and the outstanding mortgage balance of \$425,563.86.
14 Father also requests the Court order distribution of the San Francisco home sale proceeds
15 currently held in Mother's attorney's IOLTA account consistent with the Final Statement of
16 Decision and the Court's prior orders, including payment of the \$56,201.00 owed to Father.
17 Father seeks \$4,000 in Family Code section 271 sanctions against Mother. Attached as Exhibit B
18 is an appraisal report dated 2/24/26 showing the value of the Reno property is \$678,412 and
19 attached as Exhibit C is an appraisal report dated 3/25/26 showing the value of the Reno property
20 is \$705,000.

21 6) On 4/15/26, Mother filed a Reply Declaration asserting that she does not agree to Father's
22 proposed buyout because she believes the home is worth more than the appraisal value. It is
23 Mother's position that the Court's orders do not require that she accept Father's buyout of her
24 interest in the Reno property. Mother requests the Court compel the sale of the Reno property or
25 permit only a buyout opportunity that is mutual (i.e., provide Mother the opportunity to buyout
26 Father's interest in the Reno property as well).

27 **B. Findings and Order**

28 1) The Final Statement of Decision issued 10/7/25 states, "The Reno home located at 712 S.
29 Arlington Avenue, in Reno, Nevada, will be appraised within 30 days of the date of the Final

1 Statement of Decision. If the Respondent wishes to buy the Petitioner's community property
2 interest in the Reno home, he will have 45 days from the date of the Final Statement of Decision
3 to pay Petitioner her share of the community property equity. All furniture purchased prior to the
4 date of separation (3/20/22) shall be independently appraised and the Respondent shall pay the
5 Petitioner her share of the value of the furniture within 30 days of the appraisal." See page 7.

6 2) It is undisputed that no licensed appraisal was completed within 30 days of the date of the Final
7 Statement of Decision by either party.

8 7) However, Father submitted documentary evidence of two appraisals attached as Exhibits B and C
9 to his Responsive Declaration filed 4/10/26. Attached as Exhibit B is an appraisal report dated
10 2/24/26 showing the value of the Reno property is \$678,412 and attached as Exhibit C is an
11 appraisal report dated 3/25/26 showing the value of the Reno property is \$705,000.

12 8) Mother did not submit documentary evidence of the value of the Reno property to substantiate
13 her position that the property is worth more than the value shown by Father's appraisals.

14 9) Father also submitted documentary evidence of the mortgage balance attached as Exhibit F to his
15 Responsive Declaration filed 4/10/26. The outstanding principal balance on the mortgage is
16 \$425,563.86 according to this mortgage statement dated 3/16/26.

17 10) Finally, Father submitted documentary evidence of an appraisal of the personal property
18 contained in the Reno property as Exhibit M to his Responsive Declaration filed 4/10/26, which
19 states, "My consensus is that the personal property in this estate would most likely garnish returns
20 between \$3,900 to \$4,400."

21 11) Based on the foregoing, the Court will enforce the buyout provision of the Final Statement of
22 Decision issued 10/7/25 as follows:

23 12) The Court finds good cause adopt the appraisal report dated 3/25/26 showing the value of the
24 Reno property is \$705,000 (i.e., Exhibit C of Father's Responsive Declaration filed 4/10/26).

25 13) The Court further finds good cause to adopt Father's calculation of Mother's community interest
26 in the Reno property for a buyout price of \$139,718.07 (\$705,000 (appraisal value) - \$425,563.86
27 (mortgage balance) = \$279,436.14/2 = \$139,718.07).

1 14) Father shall pay this balance to Mother in full by 4/30/26. Father is permitted to pay these funds
2 directly to Mother or elect to disperse these funds from his portion of the net sale proceeds of the
3 San Francisco property.

4 15) Otherwise, Father has 30 days to complete the buyout process and transfer the mortgage and title
5 to his name only.

6 16) The Court further finds good cause to order Father to pay Mother an additional \$2,200 as an
7 equalizing payment for the personal property contained in the Reno property. Father shall pay this
8 balance to Mother in full by 4/30/26. Father is permitted to pay these funds directly to Mother or
9 elect to disperse these funds from his portion of the net sale proceeds of the San Francisco
10 property.

11 17) All other requests related to the funds from the sale of the parties' San Francisco property held in
12 Mother's attorney's IOLTA account are beyond the scope of this hearing.

13 18) Father's request for \$4,000 in sanctions is DENIED as the Court finds both parties' conduct
14 contributed to the delay in resolution of this issue.

15 19) Counsel for Father shall prepare the Findings and Order After Hearing.

16 20) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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